

STATE OF NEW YORK

3733--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. BRONSON -- read once and referred to the Committee on Mental Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to designating records and information relating to a patient who has been deceased for a period of fifty years or longer as historic records no longer subject to privacy protections

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Subdivision (c) of section 33.13 of the mental hygiene law
2 is amended by adding a new paragraph 19 to read as follows:
3 19. Records and information relating to a person who has been deceased
4 for fifty years or more shall be considered historic records and shall
5 no longer be considered confidential or subject to privacy protections;
6 provided, however that this subdivision shall not be construed as
7 requiring that a facility retain clinical records indefinitely or for
8 any particular length of time in anticipation of attempted access.
9 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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